details of the rockets. The accused were booked under several laws, including the Official Secrets Act, 1923.

Much before the CBI refer report, on 14 November 1995, the Chief Judicial Magistrate (CJM), Ernakulam had acquitted Mariam Rasheeda in the case of overstaying. The court said inspector Vijayan was ‘chasing the victim’ and ‘obstructing her from leaving India.’

The two ISRO scientists and the two other men were released on bail as early as in January 1995, but Mariam and Fauziya remained in jail as they were slapped with cases under the National Security Act and did not get sureties for bail. Mariam, in media interviews, said she was implicated in the case because she did not yield to inspector Vijayan’s sexual advances.

The CBI, after custodial interrogation of the accused for more than fifteen days and another sixteen months of investigation, submitted a ‘refer report’ before the CJM, Ernakulam on 28 April 1996, saying the spy case was false.

Examining every point raised by the Kerala Police and the IB, the CBI report said there was no evidence to substantiate the charges. The ISRO scientists were not found to have passed on any drawings or documents to anyone. No significant document from ISRO was missing. Many of the foreigners named by the IB were found to have not been in India, some of the alleged conspirators had neither known each other nor met.

The meetings, where the documents were allegedly exchanged for money at hotels in Trivandrum and Chennai, were found to have not happened. Neither any incriminating document nor money – Indian or foreign – was recovered from the accused. A scrutiny of their bank accounts did not indicate anything suspicious. There was no mention of any spy activity in Mariam Rasheeda’s diaries. The report also noted that some of the accused where tortured in the custody of the IB.

‘To sum up,’ the CBI report said, ‘in view of the evidence on record, oral as well as documentary, as discussed above, the allegations of espionage are not proved and have been found to be false. It is therefore, prayed that the report may kindly be accepted and the accused discharged